

SUPREME COURT OF THE STATE OF NEW YORK
FOR THE
COUNTY OF QUEENS, CIVIL PART

_____	)	COMPLAINT
JENNY VELIZ,	)	
	)	
Plaintiff,	)	
	)	INDEX NO.: _____
-Against-	)	
	)	
THE CITY OF NEW YORK, and NEW	)	
YORK CITY POLICE DEPARTMENT,	)	
POLICE OFFICER TIMOTHY BECK,	)	
and JOHN DOE POLICE OFFICERS 1	)	
THROUGH 10,	)	
	)	
Defendants.	)	

Plaintiff, JENNY VELIZ by and through counsel, CIVIL RIGHTS CONSORTIUM,
respectfully allege the following:

PRELIMINARY STATEMENT

The Plaintiff brings an action against the Defendants for malicious prosecution and
abuse of process.

JURISDICTION

(1) This action is brought pursuant to 42 U.S.C. § 1983, for purposes of unreasonably
seizing the Plaintiff, maliciously and abusively commencing process against the Plaintiff.
Additionally, this action is brought pursuant to 42 U.S.C. § 1983, for discrimination in arresting,
maliciously and abusively commencing process.

VENUE

(2) Pursuant to Civil Practice Law and Rules §§ 504(3) and 503(a) where the Plaintiff resides in Queens County, and where the material factual events have taken place in Queens County, this action is being commenced in Queens County.

JURY DEMAND

(3) Plaintiff respectfully demands a trial by a jury of all issues herein pursuant to Civil Practice Law and Rules § 4101(1) and (3), including whether the Defendants maliciously, abusively, and discriminatorily seized and commenced process against the Plaintiff.

PARTIES

(4) Ms. Jenny Veliz is a naturalized citizen of the United States who happens to be of Hispanic American descent, who was arrested and prosecuted as described herein.

(5) Defendant Police Officer Timothy Beck is one of the Defendant arresting Officers that arrested and commenced process as described herein.

(6) Defendants 1 through 10 are arresting Officers that arrested and commenced process as described herein.

(7) The Defendant City of New York was and is a political subdivision of the State of New York.

(8) The Defendant New York City Police Department is the municipal agency that discriminatorily, maliciously, and abusively arrested and commenced process against the Plaintiff.

FACTUAL BACKGROUND & ALLEGATIONS

(9) On or about February 27, 2023, the Plaintiff, Ms. Veliz, was going through something that is not uncommon, in that Ms. Veliz was having an argument with her then 15-year-old son, R.V.

(10) As a result of the family's loss of Mr. Veliz to COVID-19, at the height of COVID-19, on March 31, 2020, Ms. Veliz has been the sole parent for the Veliz's two children, R.V. and X.V., the later of whom is severely mentally and developmentally disabled.

(11) Upon arrival to the home, instead of engaging in de-escalation, the Police Officers, led by Defendant Beck, became accusatory, accosted Ms. Veliz, attempted to persuade R.V. to make false and incriminating statement against Ms. Veliz, and in the process arrested and transported Ms. Veliz to jail, where, Defendants, acting pursuant to Beck's authority, charged Ms. Veliz with Assault in the Third Degree under Penal Law 120.00(1), Endangerment under Penal Law 260.10(1), and Harassment in the Second Degree under Penal Law 240.23(3).

(12) Upon arrival to the whom Ms. Veliz and R.V. informed the authority who resided at the home, including Ms. Veliz and R.V.'s severely and mentally disabled son/brother, X.V.

(13) Despite that, the Defendants, acting pursuant to absolutely no evidence, arrested Ms. Veliz, drug her into custody despite her voluntariness, leaving X.V. alone as they took R.V. to the hospital and dropped him off, despite his not needing medical care.

(14) Ms. Veliz, who has no criminal record or contact, was held in custody, against her will, where she was handcuffed to a bench for many hours on end.

(15) There was no evidence, no probable cause for any of the alleged crimes.

(16) Instead, the Defendants, acting maliciously and in pursuit of a mission to criminalize Ms. Veliz for absolutely no reason, acted for legitimate or justifiable reasons.

(17) minorities and pad false numbers of criminal activity within the City of New York.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants maliciously prosecuted Ms. Veliz, causing Ms. Veliz emotional distress.

(18) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “17 above.

(19) The Defendant commenced or continued a criminal proceeding against the Plaintiff.

(20) On June 2, 2023, that proceeding was terminated in the Plaintiff’s favor on the basis that the People could not prove the charges beyond a reasonable doubt.

(21) There was no probable cause for the criminal proceedings.

(22) The Defendants, in arresting the Plaintiff and in charging the Plaintiff acted maliciously.

(23) The Defendants malicious prosecution has caused the Plaintiff emotional distress.

SECOND CAUSE OF ACTION

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants falsely arrested and imprisoned Ms. Veliz, causing Ms. Veliz emotional distress.

(24) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “23” above.

(25) The Defendants, intending to confine the Plaintiff, arrested the Plaintiff, and did take the Plaintiff into custody and detained the Plaintiff in custody for approximately 24 hours, more or less.

(26) The Plaintiff was conscious of her confinement.

(27) The Plaintiff did not consent to that confinement.

(28) The Defendants’ confinement of the Plaintiff was not otherwise privileged.

(29) The Defendants’ unlawful confinement of the Plaintiff caused the Plaintiff emotional distress.

THIRD CAUSE OF ACTION

Plaintiff brings a claim against the Defendants pursuant to 42 U.S.C. § 1983, on the basis that the Defendants maliciously abused process, causing Ms. Veliz emotional distress.

(30) Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “29” above.

(31) The Defendants commenced regularly issued criminal process against the Plaintiff.

(32) In commencing regularly issued criminal process against the Plaintiff, the Defendants, intended to do harm without excuse or justification.

(33) The Defendants' use of the regularly issued criminal process was in a perverted manner to obtain a collateral objective.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests relief and judgment, as follows:

- (a) Awarding compensatory damages and punitive damages, the latter damages to individual defendants who meet the underlying standards for imposition of such damages, of \$1,500,000 after a trial;
- (b) Awarding extraordinary, equitable, and/or injunctive relief as permitted by law, equity, and the state law, including moving expenses to Plaintiff;
- (c) Awarding all the Plaintiff reasonable costs and expenses incurred in this action, including counsel fees and expert fees;
- (d) Such other and further relief as this Court may deem just and proper.

Dated: Woodhaven, New York,
April 1, 2024

CIVIL RIGHTS CONSORTIUM.
ATTORNEYS FOR THE PLAINTIFF

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